

Crl. Misc. No.235135-B of 2018

Arjamand Shehzadi, etc.

The State, etc.

17.12.2018

M/s Aazar Latif Khan and Farooq Ali Bajwa, Advocates with petitioners.
Ms. Umm-ul-Baneen, DPG with Riaz D.S.P, Akram S.I. and Abdul Qayyum A.S.I.
Mr. Asif Javed Qureshi, Advocate for the complainant.

The petitioners-Arjamand Shahzadi and Abdullah Saqib seek pre-arrest bail in case F.I.R. No.268/2018, dated 10.05.2018, registered under sections 365, 302, 201 & 109 PPC, at Police Station Samanabad, District Lahore.

2. Arguments heard. Record perused.

3. From the perusal of the record, it is observed that the petitioner No.2 lodged instant FIR regarding abduction of his father namely Saqib Latif against unknown accused persons. On 11.05.2018 Shabaib Latif and Liaqat Ali, brother and paternal uncle of Saqib Latif respectively, moved written complaints and also got recorded their statements under section 161 Cr.P.C. against the petitioners and others for committing murder of Saqib Latif. Liaqat Ali shows his suspicion on the petitioner No.2, father-in-law and mother-in-law of Saqib Latif for committing murder in his written complaint/application. Later on, Shabaib Latif on the basis of information given by Liaqat Ali moved written complaint wherein he mentioned that the petitioners along with their co-accused committed murder of Saqib

Latif. Whereas, Liaqat Ali in his statement under section 161 Cr.P.C dated 11.05.2018 took somersault and stated mode and manner of occurrence, whereas in his written complaint/application showed suspicion on petitioners and others. Besides, it is admitted fact that nobody can make conspiracy in the manner that it should be known to others especially to the relative or near one of the complainant or the deceased. From the contents of the statements under section 161 of Cr.P.C of Dawood Ejaz and Suhaib Ejaz, it does not reveal that when they informed to the subsequent complainant about the conspiracy made by the petitioners. It is also noted that Dawood Ejaz and Suhaib Ejaz in their statements under section 161 of Cr.P.C had not stated a single word regarding the fact that when did they inform to the subsequent complainant regarding conversation of the petitioners with the deceased heard by them. The chain is not intact, which connects hearing of the conspiracy and informing the fact to the subsequent complainant. Even during investigation, the CCTV footage was secured and referred to Forensic Science Laboratory for comparison. The CCTV footage cannot be taken to be as a gospel truth unless and until the veracity of the CCTV footage is proved during the course of trial by producing evidence in this regard, both with regard to the contents as well as with regard to the timings of death of the deceased. In other words, it has to be proved by preponderance of probabilities by the subsequent complainant and witnesses that the recording in the DVD were of CCTV footage and has not been tampered with and only then it could have

been made as a basis of reliance by the court to determine what was recorded in the DVD. As two different PFSA reports create doubt about the contents of the DVD. Audio visual analysis report dated 10.10.2018 reads as under:-

Analysis: (Item # 12) Hard disk drive was found to be empty hence no analysis could be performed on it.

Whereas, from Audio visual analysis supplementary report dated 14.11.2018 was based on the similar material with the additional letter from the SP Organized Crime (CIA) Lahore for further analysis on item #12. After analysis following conclusion was drawn:-

Conclusion: Within the bounds of scientific certainty, and subject to change if additional information becomes available, my professional observations and analysis are

- The Hard Disk drive (Item # 12) was transferred to Computer Forensic Department, Punjab Forensic Science Agency Lahore. According to Computer Forensic Department report (Copy attached), Total number of Nineteen Thousand and Eighty (19080) files were recovered from unallocated space by FTK version 6.3.0.186. Date and Time information of recovered files was not identified by FTK version 6.3.0.186.
- Enhancement of videos can be performed on the provision of the relevant video files out of Nineteen Thousand Eighty (19080) files recovered from Item # 12
- Total Number Nineteen Thousand and Eighty (19080) files will be provided

upon provision of 2TB of Hard Disk Drive.

On the other hand matching report of the printed photograph of the petitioner No.2 with the 37 enhanced pictures of the suspects were provided separately by the S.P. Investigation to Forensic Science Laboratory and its source is yet to be proved. I, therefore, feel that without permitting the parties to adduce evidence with regard to the correctness of the contents of the CCTV footage, same cannot be relied upon when same were not brought on the record by neutral person. As already after registration of case the petitioner No.2 moved application for nominating Shabaib Latif, Liaqat Ali, Dawood Ejaz and Suhaib Ejaz along with others as accused for the offence. It is also admitted fact that Shabaib Latif earlier lodged criminal case against Saqib Latif-the deceased. Subsequently, the petitioner No.2 filed a private complaint under Section 200 of the Code of Criminal Procedure on 10.08.2018, whereupon the accused-Shabaib Latif, Liaqat Ali, Dawood Ejaz and Suhaib Ejaz were summoned on 14.09.2018 by the learned trial court. In view of above said circumstances, I am of the opinion that the question of involvement of the petitioners needs further probe. All these facts lead to a conclusion that the allegations leveled by the prosecution against the petitioners need further probe. Prima facie, there is sufficient reason to believe that the petitioners' case becomes one of further inquiry falling under section 497 (2) Cr.P.C. At this stage sending the petitioners behind bars would not serve any useful purpose.

4. For the foregoing reasons, instant bail petition is accepted and ad-interim pre-arrest bail already granted to the petitioners is hereby confirmed subject to their furnishing bail bonds in the sum of Rs.2,00,000/- each with two sureties each in the like amount to the satisfaction of the learned trial court.

(Aalia Neelum)
Judge

(Approved for Reporting)

Judge

*Ikram**